

Court No. - 39

Case :- WRIT - C No. - 60519 of 2015

Petitioner :- Virendra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gyan Prakash Mishra

Counsel for Respondent :- C.S.C., S.K. Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

The petitioner, who had been provided electricity connection by the Kanpur Electricity Supply Corporation, has filed this petition with the following prayer :

"A. Issue a writ order or direction in the nature of Certiorari quashing the impugned Electricity Book No.5083 Connection No.025309 and Account No.G.N. 31111914 of Domestic Connection have the 1 Kw. and type of connection is domestic and whole amount of Rs.47,166/-."

What we gather from the averments made in the writ petition is that the petitioner actually seeks the quashing of the bill that has been issued by the respondents for the supply of electricity to the petitioner.

Though number of submissions have been raised by learned counsel for the petitioner for quashing the bill but Dr. S.K. Yadav, learned counsel appearing for the Kanpur Electricity Supply Corporation has pointed out that the petitioner can invoke the provisions of paragraph 6.5 of the Electricity Supply Code, 2005.

The petitioner does have a remedy under the aforesaid paragraph of the Code. The Court, therefore, declines to entertain this petition.

The writ petition is, accordingly, dismissed.

Order Date :- 2.11.2015

GS

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)